SAMPLE SOFTWARE SERVICES AGREEMENT

FICTIONAL TEST DOCUMENT • VERSION 1.0 • 15 OCTOBER 2026

Purpose: This fictional agreement is designed to test a contract-compliance checker. It intentionally contains compliant clauses, non-compliant clauses, and missing or ambiguous terms. It is not a legal template and must not be used for a real transaction.

1. Parties and Effective Date

This Software Services Agreement (the “Agreement”) is made between Northstar Retail Labs Pvt. Ltd. (“Customer”) and BluePeak Digital Services Pvt. Ltd. (“Provider”). The Agreement becomes effective on 15 October 2026 (“Effective Date”). Each party confirms that its authorized representative may sign this Agreement.

2. Services and Deliverables

Provider will design, configure, and maintain a customer-support chatbot and an internal analytics dashboard. Provider will deliver a staging build within 30 calendar days after the Effective Date. The parties will agree on acceptance criteria in writing before production release. The Agreement does not specify a service-level target for uptime or a maximum response time for support requests.

3. Fees and Payment

Customer will pay Provider INR 1,20,000 per month plus applicable taxes. Provider will issue an invoice at the start of each month, and Customer will pay undisputed amounts within 30 calendar days of receipt. Any disputed invoice amount must be identified in writing within 10 calendar days, and the parties will work in good faith to resolve the dispute. No late-payment interest rate is stated in this Agreement.

4. Confidentiality

Each party must protect the other party’s non-public business, technical, financial, and customer information using at least reasonable care. Confidential information may be used only to perform this Agreement and may be shared with personnel who need to know it and are bound by confidentiality obligations. These duties continue for two years after termination. Information that becomes public without breach, was already lawfully known, or is independently developed is excluded. The Agreement does not define a separate incident-notification deadline for accidental disclosure.

5. Data Protection and Security

Provider may process Customer contact details and support-ticket content only to deliver the services. Provider must use access controls, encryption in transit, and reasonable safeguards against unauthorized access. Provider will notify Customer of a confirmed personal-data breach without undue delay. The Agreement does not identify the hosting region, a data-retention period, a deletion deadline after termination, or a subprocessor-approval process.

6. Intellectual Property

Each party retains ownership of intellectual property it owned before this Agreement. Upon full payment of all undisputed fees, Customer receives ownership of the custom deliverables specifically created and paid for under this Agreement, excluding Provider’s pre-existing tools, reusable components, and third-party materials. Provider grants Customer a perpetual, worldwide, non-exclusive license to use any Provider background materials embedded in the deliverables, solely as part of those deliverables.

7. Term and Termination

The initial term is 12 months from the Effective Date and renews automatically for successive 12-month periods unless either party gives at least 60 days' written notice before the end of the then-current term. Either party may terminate for a material breach if the breach remains uncured for 30 days after written notice. The Agreement does not provide an express termination right for insolvency or repeated service failures.

8. Limitation of Liability

Neither party will be liable for indirect, incidental, special, or consequential damages, or for lost profits, to the maximum extent permitted by applicable law. The Agreement contains no general cap on aggregate direct damages and no express exceptions to the damages exclusion for confidentiality breaches, data-protection breaches, fraud, or willful misconduct.

9. Indemnity

Provider will defend Customer against third-party claims alleging that the custom deliverables, as supplied by Provider and used as permitted, infringe a third party's intellectual-property rights. Customer must promptly notify Provider of the claim and reasonably cooperate. The Agreement does not state an indemnity procedure for claims arising from personal-data breaches, bodily injury, or property damage.

10. Warranties and Service Levels

Provider warrants that it will perform the services with reasonable skill and care and in substantial conformity with the written specifications agreed by the parties. Provider will use commercially reasonable efforts to keep the production service available. No numerical uptime commitment, service-credit mechanism, support-hours schedule, or severity-based response and resolution targets are stated.

11. Subcontractors

Provider may use subcontractors to perform portions of the services and remains responsible for their work. Provider will ensure that subcontractors are bound by confidentiality obligations. Customer approval is not required before a subcontractor receives access to Customer data.

12. Governing Law and Disputes

The parties will first attempt to resolve disputes through good-faith discussions between their project leads. If a dispute is not resolved within 30 days, either party may pursue available remedies before a competent court. The Agreement does not specify governing law, exclusive jurisdiction, or an arbitration procedure.

13. Notices and Signatures

Notices must be sent by email to each party's designated contract contact. The Agreement does not list the actual notice email addresses, define when an email notice is deemed received, or provide postal addresses. The parties intend to sign electronically, but no signature blocks, names, or dates of signature are included in this sample.

END OF SAMPLE AGREEMENT

Testing note: Pair this document with a separate company policy checklist. For example, a policy may require a liability cap, 30-day breach notification, data deletion within 30 days, prior approval of subprocessors, and governing-law language. The checker should distinguish an explicit breach from a clause that is merely absent or unclear. These example policy requirements are illustrative only.